

Court No. - 3

Case :- WRIT - C No. - 29023 of 2023

Petitioner :- Surya Kumar Tiwari

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shyam Lal, Abhilasha Singh, Ashutosh Yadav

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

1. Heard learned counsel for the petitioner, Sri Krishna Agrawal learned counsel for the respondent no.4, Sri Udit Chandra learned counsel for the respondents no. 4 and 5 and the learned Standing Counsel.
2. The petitioner's electricity meter was not working and, therefore, he made a complaint on 12.3.2021. Thereafter, the meter was rectified by an order dated 20.3.2021.
3. Learned counsel for the petitioner states that if there was any theft then it was in between 12.3.2021 and 20.3.2021.
4. Learned counsel for the Electricity Department, however, states that the notice dated 29.9.2021 is only a provisional assessment notice and final assessment is yet to be made.
5. Under such circumstances, we direct that the petitioner's objection be considered and he be heard in pursuance of clause 6.8 of the Electricity Supply Code, 2005.
6. With these observations, the writ petition stands disposed of.
7. Till the final assessment is made, no recovery shall be made against the petitioner.

Order Date :- 22.9.2023

PK

(Manoj Bajaj, J.) (Siddhartha Varma, J.)